

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 12/09/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
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The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.
Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

1. 9:00 AM CASE NUMBER: L24-00215
CASE NAME: THE BEST SERVICE CO., INC. VS. RON JOHNSON
*HEARING ON MOTION IN RE: FOR DEFAULT ON CONDITIONAL SETTLEMENT AGREEMENT AND
STIPULATION FOR JUDGMENT
FILED BY: THE BEST SERVICE CO., INC.
TENTATIVE RULING:

Plaintiff The Best Service Co., inc. ("Plaintiff") filed a Motion for Default on Conditional Settlement Agreement and Stipulation for Judgment on September 25, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 9, 2025.

Background

The parties entered into that certain settlement agreement filed March 28, 2024 (the "Settlement Agreement"), the terms of which included a stipulation for entry of judgment in the amount of \$11,282.78 (principal, including prejudgment interest, of \$9,387.69, attorneys' fees of \$1,572.59, and \$322.50 in costs) with provisions for satisfaction by a settlement payment by the defendant Ron M. Johnson ("Defendant") in the amount of \$9,000.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Christopher Vasquez filed September 25, 2025 as part of the Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶14 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into in the event of a default. *Id.*, **Exhibit A**, ¶¶1 and 3.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶15. Defendant failed to cure after notice. *Id.* at ¶16 and **Exhibit B** thereto.

After credit for amounts paid, Plaintiff contends that it is entitled to a total judgment of \$11,955.31 after credit for amounts paid. See Supporting Declaration, ¶¶15 and 7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

The Settlement Agreement provides for entry of judgment for certain sums. See Settlement Agreement, ¶1, Supporting Declaration, **Exhibit B**. Those sums do not include further prejudgment interest running after the stipulated amount calculated through February 27, 2024. The principal plus stipulated prejudgment interest set forth in the agreement total \$9,387.69. Deducting the four acknowledged payments of \$150.00 (\$600.00 total) leaves a balance of \$8,787.69.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.

3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$8,787.69, plus costs of \$322.50 and attorneys' fees of \$1,572.59, for a total judgment of \$10,682.78.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L25-08135

CASE NAME: SYNCHRONY BANK VS. MARISSA HARVEY

*HEARING ON MOTION IN RE: TO COMPEL ARBITRATION AND STAY PROCEEDINGS

FILED BY:

TENTATIVE RULING:

Defendant Marissa Harvey ("Defendant") filed a Motion to Compel Arbitration and Stay Proceedings on November 7, 2025 (the "Arbitration Motion"). The Arbitration Motion was set for hearing on December 9, 2025.

No proof of service of the motion on the plaintiff Synchrony Bank ("Plaintiff") and the Plaintiff has not otherwise filed any papers regarding the Arbitration Motion.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary